

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #9	CCRB Case #: 202102131	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 03/28/2021 5:00 AM	Location of Incident: 69th Precinct Stationhouse	Precinct: 69	18 Mo. SOL 9/28/2022	EO SOL 9/28/2022	
Date/Time CV Reported Sun, 04/04/2021 10:15 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 04/04/2021 10:15 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Miguel Vivas	03748	955642	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Saqib Munawar	18216	958964	069 PCT
2. LT Justin Simms	00000	937542	069 PCT
3. PO Cristian Monterrosa	18940	968012	069 PCT
4. PO Cassandra Barnwell	12801	960204	069 PCT
5. PO Lorraine Figueroa	22906	965095	069 PCT
6. PO Mina Hannalla	21874	968475	069 PCT
7. PO Richard Waters	08177	968884	069 PCT
8. PO Tony Tan	19407	968152	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Miguel Vivas	Abuse: Sergeant Miguel Vivas forcibly removed § 87(2)(b) to the hospital.	

Case Summary

On April 4, 2021, § 87(2)(b) filed this complaint with the CCRB via the Agency's call processing system.

On March 28, 2021, at approximately 5:00 a.m., § 87(2)(b) went to the 69th Precinct stationhouse in Brooklyn to get information relating to his criminal record. While there, § 87(2)(b) saw an individual being removed to an ambulance by officers and EMTs. § 87(2)(b) exited the stationhouse to record activities of the officers at the stationhouse. While outside, Sergeant Miguel Vivas, of the 69th Precinct, with the assistance of other 69th Precinct officers, placed § 87(2)(b) in handcuffs, called an ambulance to the location, and had § 87(2)(b) removed to § 87(2)(b) (**Allegation A: Abuse of Authority – Forcible removal to the hospital, § 87(2)(g)**).

§ 87(2)(b) was not arrested or issued a summons during this incident. NYPD body-worn camera (BWC) video and stationhouse video were obtained in relation to this investigation (**Board Review 01**) (**Board Review 02**). Additionally, the investigation obtained cell phone video recordings taken by § 87(2)(b) (**Board Review 03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Miguel Vivas forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated that while inside the stationhouse he was recording video on his cell phone and did not comply with orders to stop (**Board Review 04**). Also while he was inside, he spoke to many officers but maintained a calm demeanor. Ultimately, he observed officers walking an arrested individual outside the stationhouse and he began to record that interaction. After the individual was taken to an ambulance, Sgt. Vivas and other officers grabbed him at the upper body and placed him in handcuffs to remove him to the hospital. While they all waited for an ambulance to arrive, § 87(2)(b) asked that the officers let him go; however, he was told they could not because he was “mentally disturbed.” Approximately 20 minutes later, an ambulance arrived on scene and § 87(2)(b) was removed to § 87(2)(b).

During his CCRB interview, Sgt. Vivas stated that he was familiar with § 87(2)(b) before the incident in question (**Board Review 05**). § 87(2)(b) is known “to the precinct” as an “EDP.” Sgt. Vivas has responded to multiple “jobs” in the past where § 87(2)(b) was determined to be a harm to himself and/or others.

Sgt. Vivas stated that on the day of the incident, while he was attending to a prisoner that needed medical attention in the cell area of the 69th Precinct, he heard an officer yelling at a civilian to stop recording in the stationhouse. He did not recall who the officer he heard yelling was, or whether the officer said anything other than stop recording. Upon exiting the cell area, Sgt. Vivas saw that it was § 87(2)(b) who was yelled at. § 87(2)(b) “was saying something that didn’t make sense”; however, Sgt. Vivas could not recall what it was that § 87(2)(b) was saying. After seeing that it was § 87(2)(b) and that he was speaking in a way that Sgt. Vivas deemed incoherent, Sgt. Vivas believed § 87(2)(b) to be a danger to himself and possibly officers. Sgt. Vivas called for an ambulance to the stationhouse so § 87(2)(b) may be removed to the hospital. When asked, Sgt. Vivas stated that there were not any additional reasons for believing § 87(2)(b) to be a harm to himself and/or others. Sgt. Vivas called the ambulance before the first uninvolved individual was removed from the stationhouse. When asked, Sgt. Vivas stated that he did not remove § 87(2)(b) to the hospital because § 87(2)(b) was recording and refused to stop.

§ 87(2)(b) provided 16 cell phone video recordings to the investigation, which are all titled in numerical order based on chronology (**Board Review 06**). The first 14 videos, “IMG_0186.MOV” to “IMG_0199.MOV,” are all recorded before § 87(2)(b) is placed in handcuffs by the officers. While § 87(2)(b) refuses to comply with multiple instructions from

The BWC videos obtained in relation to this incident begin only after officers remove the uninvolved prisoner to the hospital, and do not depict § 87(2)(b)'s conduct while in the stationhouse.

§ 87(2)(g)

§ 87(2)(g)

[illegible]

- _____

- This complaint was not suitable for mediation.
- As of December 10, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 09**).

- [illegible]

Investigator:	<u>Wassim Abedrabbo</u> Signature	<u>SI Wassim Abedrabbo</u> Print Title & Name	<u>09/24/2021</u> Date
Squad Leader:	<u>Monique West</u> Signature	<u>IM Monique West</u> Print Title & Name	<u>03/31/2022</u> Date
Reviewer:	<u> </u> Signature	<u> </u> Print Title & Name	<u> </u> Date